This pamphlet is intended to provide the voters of Nebraska with additional information about the measures proposed via the initiative petition process that will appear on the November 3, 2026 General Election ballot.

Each measure contains three portions: the language which will appear on the November ballot, the text of the measure, and arguments supporting and opposing the measure. The arguments are derived from information provided to the Secretary of State from supporters and opponents of these measures.

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INITIATIVE MEASURE 440

Ballot Title and Text for Initiative Measure 440

Proposed by Initiative Petition

A vote "FOR" will amend the Nebraska Constitution to authorize the enactment of laws to allow persons located within Nebraska to place sports wagers through an Internet-based platform when offered by an authorized gaming operator conducting games of chance within a licensed racetrack enclosure in Nebraska.

A vote "AGAINST" means the Nebraska Constitution will not be amended in this manner.

Shall the Nebraska Constitution be amended to authorize the enactment of laws allowing persons located within Nebraska to place sports wagers through an Internet-based platform when offered by an authorized gaming operator conducting games of chance within a licensed racetrack enclosure in Nebraska?

◯ For

◯ Against

Full Text of Proposed Initiative Measure 440

OBJECT STATEMENT: The object of this petition is to amend the Nebraska Constitution to state that laws may be enacted allowing sports wagers to be placed within the State of Nebraska through an Internet-based platform offered by an authorized gaming operator.

Proposed Constitutional Amendment Language

(underscored language indicates added language, ~~strike through~~ indicates language being removed)

TEXT: Article III, section 24, of the Constitution of Nebraska shall be amended as shown:

(1) Except as provided in this section, the Legislature shall not authorize any game of chance or any lottery or gift enterprise when the consideration for a chance to participate involves the payment of money for the purchase of property, services, or a chance or admission ticket or requires an expenditure of substantial effort or time.

(2) The Legislature may authorize and regulate a state lottery pursuant to subsection (3) of this section and other lotteries, raffles, and gift enterprises which are intended solely as business promotions or the proceeds of which are to be used solely for charitable or community betterment purposes without profit to the promoter of such lotteries, raffles, or gift enterprises.

(3)(a) The Legislature may establish a lottery to be operated and regulated by the State of Nebraska. The proceeds of the lottery shall be appropriated by the Legislature for the costs of establishing and maintaining the lottery and for the following purposes, as directed by the Legislature:

(i) The first five hundred thousand dollars after the payment of prizes and operating expenses shall be transferred to the Compulsive Gamblers Assistance Fund;

(ii) Forty-four and one-half percent of the money remaining after the payment of prizes and operating expenses and the initial transfer to the Compulsive Gamblers Assistance Fund shall be transferred to the Nebraska Environmental Trust Fund to be used as provided in the Nebraska Environmental Trust Act;

(iii) Forty-four and one-half percent of the money remaining after the payment of prizes and operating expenses and the initial transfer to the Compulsive Gamblers Assistance Fund shall be used for education as the Legislature may direct;

(iv) Ten percent of the money remaining after the payment of prizes and operating expenses and the initial transfer to the Compulsive Gamblers Assistance Fund shall be transferred to the Nebraska State Fair Board if the most populous city within the county in which the fair is located provides matching funds equivalent to ten percent of the funds available for transfer. Such matching funds may be obtained from the city and any other private or public entity, except that no portion of such matching funds shall be provided by the state. If the Nebraska State Fair ceases operations, ten percent of the money remaining after the payment of prizes and operating expenses and the initial transfer to the Compulsive Gamblers Assistance Fund shall be transferred to the General Fund; and

(v) One percent of the money remaining after the payment of prizes and operating expenses and the initial transfer to the Compulsive Gamblers Assistance Fund shall be transferred to the Compulsive Gamblers Assistance Fund.

(b) No lottery game shall be conducted as part of the lottery unless the type of game has been approved by a majority of the members of the Legislature.

(4) Nothing in this section shall be construed to prohibit (a) the enactment of laws providing for the licensing and regulation of wagering on the results of horseraces, wherever run, either within or outside of the state, by the parimutuel method, when such wagering is conducted by licensees within a licensed racetrack enclosure or (b) the enactment of laws providing for the licensing and regulation of bingo games conducted by nonprofit associations which have been in existence for a period of five years immediately preceding the application for license, except that bingo games cannot be conducted by agents or lessees of such associations on a percentage basis.

(5) This section shall not apply to any law which is enacted contemporaneously with the adoption of this subsection or at any time thereafter and which provides for the licensing, authorization, regulation, or taxation of all forms of games of chance when such games of chance are conducted by authorized gaming operators within a licensed racetrack enclosure, including sports wagering through the Internet if the person placing the sports wager is located within the State of Nebraska at the time the wager is placed.

Arguments For and Against Initiative Measure 440

Supporters contend:

Vote FOR Initiative 440 to legalize online sports wagering and direct more than $166 million to property tax relief. We know Nebraskans are already wagering on sports through illegal and offshore platforms or driving to a neighboring state where wagering is legal. This means millions of dollars in tax revenue leave our state every year. Initiative 440 keeps the money in Nebraska through a legal, regulated and secure marketplace that is projected to deliver more than $166 million in direct property tax relief to Nebraska homeowners, farmers, ranchers and small businesses over the next ten years. Legal online sports wagering will keep the money in Nebraska and generate millions of dollars in real property tax relief. Vote FOR Initiative 440.

Opponents contend:

Initiative Measure 440 turns every phone into a casino, every play into a wager, and every athlete into a target—sending hundreds of millions of dollars out of Nebraska to out-of-state gambling conglomerates. It is funded by out-of-state billion-dollar gambling corporations and opposed by many Nebraska leaders, players, and coaches. Online sports betting fuels corruption in sports and is one of the most common forms of abuse athletes receive, including threats of violence to themselves and their families. Every teenager with a phone will face aggressive advertising, while taxpayers and families get no real property tax relief, as casinos promised five years ago, and will be forced to pay for increased social costs. Vote AGAINST Initiative Measure 440 to protect Nebraska families, taxpayers, and student-athletes.